

Court No. - 21

Case :- WRIT - C No. - 16553 of 2012

Petitioner :- Yogendra

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Rishikesh Tripathi

Respondent Counsel :- Rajesh Tripathi

Hon'ble R.K. Agrawal,J.

Hon'ble Vinay Kumar Mathur,J.

Connect with Writ-C No.38711 of 2011, Sanjay Kumar Upadhyaya Vs. U.P. Power Corporation Ltd. and others.

Sri Rajesh Tripathi appears on behalf of respondents no.1, 2 and 5. Issue notice to respondent no.3 and 4. Petitioner will take step in office within a week.

Learned counsel for the petitioner submits that respondent no.4 is not authorized under the provision of U.P. Electricity Supply Code, 2005 to make assessment of electricity theft. He refers to clause 7.3 (I) of the Code aforesaid. Prima facie the submissions made by the petitioner makes out a case for grant of interim relief.

Let a counter affidavit be filed within four weeks and list thereafter.

In the meantime no further action shall be taken in pursuance of assessment dated 2.3.2012 (Annexure 2 to the writ petition).

Order Date :- 4.4.2012

T. Sinha

Court No. - 21

Case :- WRIT - C No. - 16553 of 2012

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Respondent :- U.P. Power Corporation Ltd. And Others

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Respondent Counsel :- Rajesh Tripathi

Hon'ble Yatindra Singh,J.

Hon'ble Mahendra Dayal,J.

1. In view of the fact that we have modified the interim order in the leading writ petition, the interim order passed in this writ petition is also confirmed subject to the modification that the further proceeding in pursuance of the provisional assessment notice shall remain stayed provided the petitioner files a bank guarantee of half of the amount, mentioned in the provisional bill before the concerned Executive Engineer of the Dakshinanchal Vidyut Vitran Nigam Ltd. within a period of three weeks. In case the bank guarantee is not filed within the period of three weeks then the interim order shall stand automatically vacated.
2. In case, the writ petition is dismissed, bank guarantee will be transferred to M/s. Torrent Power Limited. The bank guarantee may be realised only after the provisional bill is finalised and in case the final amount due is found to be more than the bank guarantee submitted.
3. It is also clarified that the petitioner shall continue to pay all future charges as and when fall due.

Order Date :- 26.9.2012

vs

Court No. - 21

Case :- WRIT - C No. - 16553 of 2012

Petitioner :- Yogendra

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Rishikesh Tripathi

Respondent Counsel :- Rajesh Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Zaki Ullah Khan,J.

Sri Arun Kumar, Advocate, holding brief of Sri Rishikesh Tripathi, learned counsel for the petitioner states that the petitioner does not want to pursue the present Writ Petition any further, and, he wants to withdraw the same, and therefore, the Writ Petition may be dismissed as withdrawn.

Civil Misc. Withdrawal Application No. 381527 of 2012 has also been filed on behalf of petitioner making similar prayer. An Affidavit sworn by Yogendra, stated to be the sole petitioner in the Writ Petition, has been filed in support of the aforesaid Withdrawal Application.

In view of the statement made above by Sri Arun Kumar, Advocate, holding brief for Sri Rishikesh Tripathi, learned counsel for the petitioner and keeping in view the averments made in the aforesaid Withdrawal Application and its accompanying Affidavit, the Writ Petition is dismissed as withdrawn.

Interim order, if any, stands vacated.

It is made clear that no liberty is being given to the petitioner to file fresh Writ Petition on the same cause of action.

Order Date :- 3.1.2013

v.k.updh.